

23STCV19072 23STCV19072

County: los-angeles

Division: Civil Law and Motion

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Case Number: 23STCV19072 Hearing Date: August 13, 2026 Dept: 510

No.

11 - PlumbingAndFire, Inc. v. Nehorai Construction Inc., et al.

Nissim

Kanizo's Motion for Leave to Intervene and Set Aside Default and Vacate any

Judgment Obtained by Plaintiff

Non-party

Nissim Kanizo ("Kanizo") moves for leave to intervene in this action between Plaintiff

PlumbingAndFire, Inc. and Defendants Nehorai Construction Inc. and Ilan Kenig.

Kanizo also moves to set aside and vacate the default judgment entered against

Defendants on December 13, 2024.

Request for Judicial Notice

Plaintiff requests the

Court take judicial notice of two documents associated with Kanizo's contractor's

license. The Court declines to take

judicial notice of these documents, as they were irrelevant in deciding the

instant motion.

The request for judicial

notice is denied.

Evidentiary Objections

Plaintiff

makes 9 objections to Kanizo's declaration submitted in support of his motion. Objections

nos. 3-6 are sustained based on lack of foundation. Objection no. 9 is sustained based on lack of relevance. The remaining objections are overruled. Kanizo

also submitted a declaration purportedly in support of his reply brief, but filed three days after he filed the reply brief and only three days before the hearing on this motion. The Court did not consider the untimely declaration.

Leave to Intervene

As

an initial matter the Court notes that Kanizo did not include a proposed answer in intervention along with his motion. Code of Civil Procedure section 387(c) states "The petition shall include a copy of the proposed complaint in intervention or answer in intervention and set forth the grounds upon which intervention rests." The failure to attach the proposed pleading alone justifies denial of the motion. (See *Muller v. Robinson* (1961) 193 Cal.App.2d 835, 837-838.)

Timeliness
of Motion to Intervene

Plaintiff argues Kanizo failed to timely file this motion. Intervention, whether mandatory or permissive, must be done "upon timely application." (CCP § 387(d)(1) & (2).) To determine timeliness, the court must examine "the totality of the circumstances" with a "focus on three primary factors: (1) the stage of the proceeding at which an applicant seeks to intervene; (2) the prejudice to other parties; and (3) the reason for the delay." (*Crestwood Behavioral Health, Inc. v. Lacy* (2021) 70 Cal.App.5th 560, 574.) "The determination of the timeliness of intervention is committed to the discretion of the trial court." (*Lofton v. Wells Fargo Home Mortgage* (2018) 27 Cal.App.5th 1001, 1012.)

First, default judgment was entered 20 months ago on December 13, 2024 for \$34,346.15. Plaintiff argues that Kanizo learned of the judgment in March 2025 at the latest, because he called Plaintiff's counsel on March 25, 2025, offering to pay the amount due on the judgment. (See *Apanian Decl.*, ¶ 8.) This suggests that he was aware of his license suspension at that time, or else he would have no incentive to pay the judgment. Kanizo does not dispute this in reply. Kanizo did not file this motion until January 27, 2026.[1]

Thus, Kanizo attempts to intervene well into the post-judgment and enforcement

stage of proceedings.

Second, Plaintiff shows prejudice resulting from Kanizo's delay. Plaintiff explains that collection efforts on the judgment have been stalled because of the delay. In addition, because Plaintiff received a judgment in this case, it dismissed its companion mechanic's lien suit against Defendants. Now the mechanic's lien claim is time barred under the statute of limitations, and Plaintiff could not recover under that claim.

Third, Kanizo does not provide a good reason for his delay. He argues in reply that he tried to resolve the matter without litigation, and "was attempting to determine the correct legal procedure to protect my license and my livelihood because I was not originally a party to this lawsuit." (Kanizo Reply Decl., ¶ 22.) He argues that he filed this motion once it became clear that the CSLB would continue the suspension of his license in September 2025. (See *id.*, ¶¶ 20, 23.) However, Kanizo does not explain why he could not have filed this motion before engaging in informal settlement discussions, nor why he waited an additional four months to file this motion after he realized the suspension would continue.

The motion is untimely.

Even if the Court had granted the motion, it is unclear what role Kanizo anticipates playing in this case. His dispute is with the California Contractors State License Board, which is apparently putting at risk his contractor's license due to his long-ago affiliation with Defendant Nehorai. That dispute is not the subject of this litigation, and cannot be resolved merely by adding Kanizo as a party to this case.

Set

Aside or Vacate Default Judgment

To the extent that Kanizo requests the Court to set aside the default judgment under CCP § 473(d), the Court declines to do so. The default judgment is not void on its face. While Kanizo argues that the proof of service of the complaint on Defendants is defective, he provides no admissible evidence showing the addresses identified on the proof of service were incorrect. Even so, Kanizo also has no standing to raise this issue. (See CCP § 473(d) ["The court may, upon motion of the injured party,

or its own motion, correct clerical mistakes in its judgment or orders as entered.”] [emphasis added].)

Disposition

Non-party Nissim Kanizo’s motion for leave to intervene and set aside default and vacate any judgment obtained by Plaintiff is denied.

[1]

The Court also notes that after Kanizo filed the instant motion, he continued the hearing twice—once from March 30, 2026 to May 28, 2026 and another time from May 28, 2026 to October 29, 2026. In July 2026, the Court granted Plaintiff’s motion to advance the hearing to prevent further delay.